

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL A. ROWE,

Index No.:
Date Filed:

SUMMONS

Plaintiff,

Plaintiff designates KINGS
County as the place of trial
The basis of venue is place
of occurrence

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER NICHOLAS
STEPHONAPOLIS, in his official capacity and
Individually, OFFICERS JOHN DOE, OFFICERS
JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Incident occurred:
County of Kings
City and State of
New York

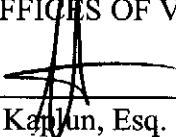
Defendants.
-----X

To the above-named Defendant (s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) ; and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 10, 2015

LAW OFFICES OF VEL BELUSHIN, P.C.

By:  _____

Nataliya Kaplun, Esq.

FOR LAW OFFICES OF VEL BELUSHIN, P.C.

Attorneys for Plaintiff

DANIEL A. ROWE

1712 Kings Highway, 2nd Floor

Brooklyn, NY 11229

Tel: (718) 787-4470

RIDER

Defendants' address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

OFFICER NICHOLAS STEFPHONAPOLIS
C/O NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York, 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL A. ROWE,

Index No.:
Date Filed:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER NICHOLAS
STEFPHONAPOLIS, in his official capacity and
individually, OFFICERS JOHN DOE, OFFICERS
JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.

-----X

Plaintiff, DANIEL A. ROWE, by his attorney, LAW OFFICES OF VEL
BELUSHIN, P.C. complaining of the defendants, THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS
OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE, OFFICERS JANE
DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO
THE PLAINTIFF, IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, respectfully
alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein mentioned, plaintiff, DANIEL A. ROWE, was, and still is, a resident of the County of Kings, City and State of New York.

2. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was, and still is, a municipal corporation.

3. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is an entity operated by defendant, THE CITY OF NEW YORK, its agents, servants and employees.

4. That on May 2, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things the time when and the place where injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on plaintiff's behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

5. The Notice of Claim set forth the name and post office address of claimant and the claimant's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damage and injuries sustained.

6. More than ninety (90) days have elapsed since the presentation of said claims and the defendant, THE CITY OF NEW YORK has not requested a hearing pursuant to Section 50-h of the General Municipal Law.

7. This action has been commenced within one year and ninety days after the cause of action occurred.

8. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained THE NEW YORK CITY POLICE DEPARTMENT, as units and agencies of the city government, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the City and State of New York.

9. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/ or screen police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

10. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officer and of THE NEW YORK CITY POLICE DEPARTMENT.

11. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officer and of THE NEW YORK CITY POLICE DEPARTMENT.

12. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

13. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

14. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers of THE NEW YORK CITY POLICE DEPARTMENT.

15. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

16. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

17. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in an illegal manner.

18. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in an unprofessional manner.

19. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

20. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

21. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers of THE NEW YORK CITY POLICE DEPARTMENT clearly unfit to be police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

22. That all times hereinafter mentioned, defendants, OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, were an agent, servant and/or employee of THE NEW YORK CITY POLICE DEPARTMENT, an agency of defendant, THE CITY OF NEW YORK.

23. That at all times hereinafter mentioned, defendants, OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF in his official capacity and individually, were acting within the scope of their employment, by defendant, THE NEW YORK CITY POLICE DEPARTMENT, an agency of defendant, THE CITY OF NEW YORK and were acting under the color of State Law.

24. That at all times hereinafter mentioned, defendants, OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in THE NEW YORK CITY POLICE DEPARTMENT in their official capacity and individually, were acting within the scope of their employment with the permission and consent of defendant, THE

NEW YORK CITY POLICE DEPARTMENT through its agency with defendant, THE CITY OF NEW YORK.

25. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to properly and adequately conduct investigations, obtain true facts and statements from witnesses and law enforcement officers.

26. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was careless, reckless and negligent in failing to discover the true facts of the assault and battery of the plaintiff.

27. The defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was further careless, reckless and negligent in the supervision of the activities of its agency, the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT by its agents, servants, employees, agencies and/or departments failed to take all necessary steps to prevent the false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial and, personal injuries; Violation of Civil Rights pursuant to 42 U.S.C. Section 1981, 1982, 1983, 1985 and 1986 and more particularly protected under the 4th, 5th, 8th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution of plaintiff, DANIEL A. ROWE.

29. That on or about February 14, 2014 at approximately 2 p.m. plaintiff, DANIEL A. ROWE, was a lawful passenger in a motor vehicle which was parked on Avenue X at or near its intersection with East 21st Street, County of Kings, City and State of New York. The vehicle which claimant was occupying was approached by defendant, OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, plaintiff, DANIEL A. ROWE, was ordered to exit the vehicle and present identification to the DEFENDANTS, OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF. After complying with the defendants' OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, order and exiting the vehicle plaintiff, DANIEL A. ROWE, presented valid identification to defendants' OFFICER NICHOLAS SPEFPHONAPOLIS IN OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, and plaintiff, DANIEL A. ROWE, was immediately searched. The search revealed a bottle containing prescription

Oxycodone with a decal on the said bottle that contained prescription information and plaintiff's, DANIEL A. ROWE, name in capital letters as the individual whom the medication was lawfully prescribed to by plaintiff's, DANIEL A. ROWE, physician. Plaintiff's, DANIEL A. ROWE was then immediately cuffed and told that plaintiff, DANIEL A. ROWE was under arrest. Upon information and belief plaintiff, DANIEL A. ROWE, was charged with criminal possession of a controlled substance. Plaintiff, DANIEL A. ROWE spent approximately twenty-four hours in custody at the 61st Precinct together and as an inmate at Kings County Criminal Court while awaiting arraignment. Upon information and belief Kings County District Attorney's Office declined to prosecute plaintiff, DANIEL A. ROWE, and plaintiff, DANIEL A. ROWE, was released from custody without being arraigned. All of the above was a result of the and carelessness, recklessness, willful disregard and negligence of defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JANE DOE, OFFICERS JOHN DOE, FIRST AND LAST NAMES CURRENTLY UNKNOWN TO CLAIMANT, IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY , their agents, servants and/or employees in the operation, management, inspection, supervision and/or control/training of the above mentioned police officer and police officers.

30. At the aforesaid date time and place, the defendants, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY ,OFFICERS JOHN DOE AND OFFICERS JANE DOE,

FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, performed a false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial to the Plaintiff, DANIEL A. ROWE, causing said plaintiff to sustain serious mental distress. That as a result of the defendants', OFFICER NICHOLAS STEPPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, conduct the plaintiff, DANIEL A. ROWE sustained great fear, emotional harm, disgrace, anxiety, stress, embarrassment and loss of self-esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by defendants. Plaintiff, DANIEL A. ROWE, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature.

31. That the defendants', OFFICER NICHOLAS STEPPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, conduct was a substantial factor in causing the incident and the Plaintiff's, DANIEL A. ROWE, damages.

32. The aforesaid occurrence and resulting damages to the plaintiff, DANIEL A. ROWE, were due to misconduct of the defendants herein.

33. Said occurrence and resulting injuries of plaintiff, DANIEL A. ROWE, were due without fault or wrongdoing on the part of the plaintiff contributing thereto.

34. By reason of the foregoing, the plaintiff, DANIEL A. ROWE, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

36. That on or about February 14, 2014 the Plaintiff, DANIEL A. ROWE, was without just cause or provocation maliciously, recklessly and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to plaintiff, DANIEL A. ROWE, due to conduct of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity.

37. That said conduct constituted negligence of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

38. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A THIRD CAUSE OF ACTION

39. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

40. That on or about February 14, 2014 the Plaintiff, DANIEL A. ROWE, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the negligence of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEPHONAPOLIS, IN

HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

41. That said conduct constituted negligence of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

42. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FOURTH CAUSE OF ACTION

43. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

44. That on or about February 14, 2014 the Plaintiff, DANIEL A. ROWE, was falsely arrested, falsely imprisoned, became a victim of excessive force,

harassment, malicious prosecution, denial of right to a fair trial due to the reckless conduct of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICER JOHN DOE AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

45. That said conduct constituted reckless conduct of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY , OFFICER JOHN DOE AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

46. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FIFTH CAUSE OF ACTION

47. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

48. That on or about February 14, 2014, the Plaintiff, DANIEL A. ROWE, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the willful, wanton, reckless and/or malicious conduct of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

49. That said conduct constituted willful, wanton, reckless and/or malicious conduct of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

50. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SIXTH CAUSE OF ACTION

51. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

52. That on or about February 14, 2014 the defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFFHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, intentionally, recklessly carelessly and/or negligently engaged in extreme and outrages conduct measured by the reasonable bounds of decency tolerated by decent society, thereby inflicting mental and emotional distress upon plaintiff, DANIEL A. ROWE.

53. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

54. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

55. That on or about February 14, 2014 the Plaintiff, DANIEL A. ROWE, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the negligent, careless and improper training, supervision and control of police officers, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and defendant, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

56. That said conduct constituted negligent, careless and improper training, supervision and control of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendant, THE NEW YORK CITY POLICE DEPARTMENT and defendants, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

57. That the defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, due to the negligent, careless and improper training, supervision and control of police officers induced criminality.

58. That the defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendant, THE NEW YORK CITY POLICE DEPARTMENT and defendants, OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, conduct was egregious as a matter of law.

59. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A EIGHTH CAUSE OF ACTION

60. Plaintiff, DANIEL A. ROWE, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

61. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff, DANIEL A. ROWE, without probable cause, the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived plaintiff, DANIEL A. ROWE, of the rights, privileges and immunities protected under the 14th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

62. As a result of the aforescribed actions the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICER JOHN DOE AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived the plaintiff, DANIEL A. ROWE, of the right to be free

from unreasonable search and seizures protected under the 4th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

63. As a result of the aforescribed actions the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived plaintiff DANIEL A. ROWE, of his right to liberty without due process of law protected under the 5th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

64. As a result of the aforescribed actions the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEFPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived plaintiff, DANIEL A. ROWE, of his right to be free from cruel un unusual punishment protected under the 8th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

65. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

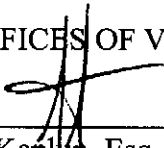
66. The aforescribed acts of the defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER NICHOLAS STEPPHONAPOLIS, IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

65. That as a result of the aforesaid occurrence, Plaintiff, DANIEL A. ROWE, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

WHEREFORE, Plaintiff, DANIEL A. ROWE, seeks damages herein on all causes of action, in sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with costs and disbursements of this action.

Dated: Brooklyn, New York
February 10, 2015

LAW OFFICES OF VEL BELUSHIN, P.C.

By:  _____

Nataliya Kaplan, Esq.

FOR LAW OFFICES OF VEL
BELUSHIN, P.C.

Attorneys for Plaintiff

DANIEL A. ROWE

1712 Kings Highway, 2nd Floor

Brooklyn, NY 11229

Tel: (718) 787-4470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL A. ROWE,

Index No.:

Date Filed:

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER NICHOLAS
STEFPHONAPOLIS in his official capacity and
individually, OFFICERS JOHN DOE, OFFICERS
JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.

-----X

Nataliya Kaplun, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury:

I am of counsel to LAW OFFICES OF VEL BELUSHIN, P.C., attorney of record
for the Plaintiff, DANIEL A. ROWE, I have read the annexed **COMPLAINT** and know
the contents thereof, and the same are true to my knowledge, except those matters therein
which are stated to be alleged upon information and belief, and as to those matters I
believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon
facts, records, and other pertinent information contained in the office files.

This verification is made by me because the Plaintiff, DANIEL A. ROWE, is not
presently in the county wherein I maintain my office.

DATED: Brooklyn, New York
February 10, 2015



NATALIYA KAPLUN, ESQ.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF **KINGS****

-----X
DANIEL A. ROWE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER NICHOLAS STEPHONAPOLIS in his official
capacity and individually, OFFICERS JOHN DOE, OFFICERS JANE DOE, First and
Last Name Being Fictitious as Currently Unknown to the Plaintiff, in their official
capacity and individually,

Defendants.

-----X.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF VEL BELUSHIN, P.C.

Attorneys for Plaintiff

DANIEL A. ROWE

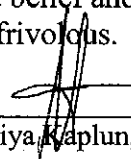
1712 Kings Highway, Suite 2

Brooklyn, New York 11229

(718) 787-4470

TO: SEE RIDER

Pursuant to 22NYCR 130-1.1 the undersigned, an attorney admitted to practice in
the courts of New York State, certifies that upon information and belief and reasonable
inquiry, the contents contained in the annexed document are not frivolous.



Nataliya Kaplun, Esq.

Dated: **February 10, 2015**